

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE LEWIS T. BABCOCK

Courtroom Deputy: Emily Buchanan
Court Reporter: Julie Thomas

Date: January 9, 2017

Civil Case No. 15-cv-01068-LTB-KLM

Counsel:

SEAN TRUJILLO,

Plaintiff,

Charles Crichton

v.

WAL-MART STORES, INC.,

Defendant.

Ashley Larson
Debra Sutton

COURTROOM MINUTES

Trial to Jury - Day One

8:32 a.m. Court in session.

Also seated at Plaintiff's table: Plaintiff Sean Trujillo and paralegal Kayla Osby. Also seated at Defendant's table: client representative Brenda Rowell.

Jury panel not present.

ORDERED: Witnesses shall be sequestered.

Court has distributed an initial set of jury instructions to counsel.

Discussion regarding proposed voir dire.

Plaintiff's Exhibits Stipulated and Received: 1 and 6.

Defendant's Exhibits Stipulated and Received: A through E.

8:37 a.m. Court in recess.

9:09 a.m. Court in session.

Jury panel present.

Court's opening remarks.

Court advises jury panel regarding stipulated facts.

Jurors sworn for voir dire.

Fifteen jurors called to the jury box.

Counsel introduce themselves and those seated at counsel tables.

9:45 a.m. Voir dire by the Court commences.

Challenges for cause: 308518, 319589

Plaintiff's challenges: 302099, 305621, 301321

Defendant's challenges: 311157, 290526, 300680

10:36 a.m. Nine jurors sworn to try the case: 311605, 327760, 326499, 285902,
299730, 284135, 299866, 324198, 300281

Court instructs jury.

10:38 a.m. Court in recess.

11:04 a.m. Court in session.

11:06 a.m. Jury present.

Court further instructs the jury.

11:23 a.m. Opening statement by Mr. Crichton.

11:40 a.m. Opening statement by Ms. Larson.

11:54 a.m. Court in recess.

1:18 p.m. Court in session.

Jury present.

Plaintiff's witness, Randall Erickson, sworn.

1:20 p.m. Direct examination of Mr. Erickson by Mr. Crichton.

Plaintiff's Exhibit 3 received.

1:32 p.m. Confidential Excerpts of the Deposition of Randy Scott Erickson opened and used for impeachment.

1:33 p.m. Continued direct examination of Mr. Erickson by Mr. Crichton.

Plaintiff's Exhibit 4 received.

2:24 p.m. Court in recess.

2:42 p.m. Court in session.

Jury present.

2:42 p.m. Continued direct examination of Mr. Erickson by Mr. Crichton.

2:59 p.m. Cross and direct examination of Mr. Erickson by Ms. Larson.

3:45 p.m. Redirect and cross examination of Mr. Erickson by Mr. Crichton.

3:48 p.m. Recross and redirect examination of Mr. Erickson by Ms. Larson.

Court advises jurors regarding admonitions of trial. Trial will resume tomorrow at 9:00 a.m. with the jury and 8:15 a.m. with counsel.

3:49 p.m. Court in recess.

Trial continued.

Time: 4:37